

Subject: Re: Arias / Bianchi - violations of the TRO
Date: Tuesday, April 8, 2025 at 10:50:54 PM Central Daylight Time
From: Nick@aribia.llc <nick@aribia.llc>
To: Madyson Lehmann <MadysonLehmann@allenglassman.com>
CC: jonathanschatz <JonathanSchatz@allenglassman.com>
Attachments: image001.jpg, image002.png

Hi Madyson,

Thanks as always for your support and patience. Following up on your request, I want to clearly address the misrepresentations in opposing counsel's claims regarding ARIBIA LLC, the Medellín property, and alleged TRO violations.

1. ARIBIA LLC is a Business Entity, Not a Marital Asset – The TRO Mischaracterization

- ARIBIA LLC was established on July 15, 2022—prior to my marriage to Luisa.
- It was never a marital asset under Illinois law (750 ILCS 5/503) and has been exclusively funded by me.
- On July 6, 2023, Luisa signed the Morada Mami Purchase Written Consent, explicitly acknowledging that the property was a business investment—not a personal or marital residence.
- On October 29, 2024, ARIBIA LLC was formally transferred to IT CAN BE LLC, and Luisa was removed as a member via Unanimous Consent on October 14, 2024, due to financial delinquency and non-performance per the Illinois Limited Liability Company Act (805 ILCS 180/35-45)
- Sharon Jones contributed capital to ARIBIA LLC in March 2024, reinforcing that ARIBIA LLC is a business entity with multiple financial stakeholders—not a marital property or asset
- The TRO does not enjoin standard business operations, and Illinois Supreme Court Rule 307 confirms that injunctive relief must be narrowly tailored and cannot block routine financial enforcement.

2. Lease Agreement & Ongoing Non-Payment Issues

- The lease for Morada Mami was signed by Camilo Arias (Luisa's brother), with Luisa acting as a verbal guarantor.
- The lease explicitly acknowledged that the property could be sold, and tenants understood this at the time of signing.
- Colombian counsel has reviewed the lease and confirmed that it is valid and legally enforceable under Colombian law.
- Under Colombian Civil Code Article 2232, landlords have the right to evict tenants for non-payment.
- Luisa does not live in the property, and her claims of "wrongful eviction" are legally baseless—she is not a tenant.

3. Opposing Counsel is Misrepresenting the TRO's Scope

- Enforcing lease terms and collecting rent is standard business practice, not a TRO violation.
- Luisa's family members are tenants under a legal agreement, not parties protected under the TRO.
- Opposing counsel is knowingly misrepresenting the TRO in an attempt to unilaterally benefit Luisa's family at ARIBIA LLC's expense.

4. Financial Harm & Potential Legal Liability for Opposing Counsel

- The tenants have failed to make payments, directly harming ARIBIA LLC's solvency.
- Luisa is unilaterally extending financial benefits to her family at the expense of ARIBIA LLC, despite having no standing to interfere in business operations.
- Opposing counsel's false representations of the TRO are facilitating financial harm, which may warrant sanctions under Illinois Supreme Court Rule 137 (Sanctions for False or Frivolous Filings).

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5. Immediate Requests for Clarification & Next Steps

To resolve this matter, provide written confirmation on the following:

- Does their client acknowledge the unpaid rent balance?
- Does their client believe the TRO grants indefinite free housing to her family?
- What is their client's proposed resolution for the outstanding financial obligation?

If payment arrangements are not confirmed, ARIBIA LLC intends to proceed with:

- Filing a formal eviction under Colombian property law.
- Pursuing financial recovery for unpaid obligations.

6. Final Notice: ARIBIA LLC's Fiduciary Duty to Enforce Lease Agreements

To be clear, this is not an attempt to circumvent the TRO—it is a necessary business action to prevent continued financial harm:

- ✓ Rent collection is a standard business practice and is not prohibited by the TRO.
- ✓ Eviction due to non-payment is legally justified and enforceable under Colombian law.
- ✓ ARIBIA LLC has a fiduciary duty to prevent ongoing financial losses caused by

continued non-payment.

7. Final Request: Will Opposing Counsel Facilitate Resolution or Continue Obstruction?

Opposing counsel must now decide whether they:

- Engage in good-faith resolution efforts, including arranging payment of arrears.
- Continue their legally baseless attempts to misrepresent the TRO's scope.

If opposing counsel refuses to correct their misrepresentations, facilitate payment, or clarify their legal position, ARIBIA LLC will proceed with all available legal remedies to recover losses and enforce lease terms.

Nick

From: Nick <nick@aribia.llc>
Sent: Friday, March 14, 2025 1:10:02 PM
To: Madyson Lehmann <MadysonLehmann@allenglassman.com>
Cc: jonathanschatz <JonathanSchatz@allenglassman.com>
Subject: Re: Arias / Bianchi - violations of the TRO

received. give me a few minutes

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From: Madyson Lehmann <MadysonLehmann@allenglassman.com>
Sent: Thursday, March 13, 2025 1:44:34 PM
To: Nick <nick@aribia.llc>
Cc: jonathanschatz <JonathanSchatz@allenglassman.com>
Subject: FW: Arias / Bianchi - violations of the TRO

Following up on the below Nick. Please advise.

From: Molly Carmody <molly@berlinmelzerlaw.com>
Sent: Wednesday, March 12, 2025 4:23 PM
To: Jonathan Schatz <JonathanSchatz@allenglassman.com>
Cc: paralegal berlinmelzerlaw.com <paralegal@berlinmelzerlaw.com>; Madyson Lehmann <MadysonLehmann@allenglassman.com>
Subject: RE: Arias / Bianchi - violations of the TRO

Good afternoon, Jonathan –

Just following up on the email below. Please let me know once you've confirmed with Nick that he will not continue to contact Luisa's family per the October 31, 2024 order nor threaten evictions during the pendency of this case.

Molly Carmody, Senior Associate
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From: Jonathan Schatz <JonathanSchatz@allenglassman.com>
Sent: Monday, March 10, 2025 5:02 PM
To: Molly Carmody <molly@berlinmelzerlaw.com>
Cc: paralegal berlinmelzerlaw.com <paralegal@berlinmelzerlaw.com>; Madyson Lehmann <MadysonLehmann@allenglassman.com>
Subject: Re: Arias / Bianchi - violations of the TRO

We will speak to our client and follow up in the next 24 hours

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From: Molly Carmody <molly@berlinmelzerlaw.com>
Sent: Monday, March 10, 2025 4:32 PM
To: Jonathan Schatz <JonathanSchatz@allenglassman.com>
Cc: paralegal berlinmelzerlaw.com <paralegal@berlinmelzerlaw.com>
Subject: Arias / Bianchi - violations of the TRO

Jonathan –

I just received notification from my client that Nicholas is attempting to evict Luisa's family from the property in Colombia. There is no agreement for this to happen and Nicholas should not be circulating the attached eviction documents against the TRO order that was entered. Please advise your client regarding the same and to stop any further actions not agreed to by the parties that would affect the marital business and properties held within the company.

Please advise once you've confirmed with Nicholas that the eviction will not proceed.

Thank you,

Molly Carmody, Senior Associate

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